Table 43. Compliance checklist against the Bangladesh framework

Area	Requirement (as reported)	BAPIL control	Evidence
Consent and lawful basis (PDPA 2026)	Explicit consent for collection and use of personal data	P0-first; consent records for P3 pilot data	Consent forms; DPIA
Data-subject rights (PDPA 2026)	Access, correction, deletion; restriction of automated decisions	No automated decisions on individuals; rights-request procedure	Procedure; request log
Sensitive and children's data (PDPA 2026)	Enhanced protection; restrictions on profiling minors	P3 data excluded by charter	Charter; data inventory
Data custody and exchange (NDMA 2026)	Custodian duties; approved data exchange	Data-sharing agreements; use of NRDEX where available	Signed agreements
Data residency (PDPA amendment, 2026)	Data-residency provisions changed by the 2026 amendment ordinance, reportedly limited to critical sectors such as banking and healthcare [75, 76] (scope and status under the Act to be confirmed)	All data above class P0 hosted in Bangladesh (NFR-02)	Hosting agreement
Source code (NDMA 2026)	National source code repository for government software (as described for the 2025 Ordinance)	Open-source code; mirror to national repository when available	Repository links
Security duties (Cyber Security Act 2026)	Protection of systems and data; incident handling	NIST CSF 2.0 controls; incident plan	Security reviews; drills
Harmful AI-generated content (reported 2026 amendment; to be confirmed)	Removal of harmful synthetic content, if enacted	No generation of synthetic media; research protocols for P6	ERRC approvals
Proactive disclosure (RTI Act 2009)	Publication of public information	Open publications; transparency register	Published register
Draft national AI policy	Risk categories; impact assessment; oversight	Tier system aligned; impact assessments for T2 and T3	Assessments; register

Requirements summarise press reports and secondary legal commentary [6, 7, 8, 9, 10, 39, 75, 97]. Which provisions are in force, and from when, has not been confirmed. The legal review (Section 14.3) checks each line against the gazetted texts; until then BAPIL applies the stricter reading.

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